Federal Legislature on the same subject-matter.

With regard to the position of the Federal Ministers, the White Paper says that 'the number of ministers and the amounts of their respective salaries will be regulated by Act of the Federal Legislature'.[1] Nevertheless, there is a further provision that the salary and allowances of the Federal Ministers will not be submitted to the vote of either Chamber of the Federal Legislature.[2] (There are similar provisions with regard to the Provincial Ministers.)

With regard to the Federal Judiciary, the White Paper provides for a Federal Court and a Supreme Court. The Federal Court will have an original and an appellate jurisdiction and will deal with all disputes involving the interpretation of the Constitution Act or any rights or obligations arising thereunder. An appeal will lie to His Majesty in Council from a decision of the Federal Court in any matter involving the interpretation of the Constitution Act. There will also be a Supreme Court for India, which will be a Court of Appeal from High Courts in British India. An appeal from the Supreme Court to His Majesty in Council will be allowed in civil cases only by leave of the Supreme Court. In criminal cases no such appeal will be allowed. After the publication of the White Paper, while giving evidence before the Joint Parliamentary Committee, Sir Samuel Hoare stated that the idea of having a separate Supreme Court might be abandoned and provision might be made enabling the Legislature, if and when it was thought desirable, to extend the jurisdiction of the Federal Court—so as to make it the one final Court of Appeal, subject always to the right of appeal to His Majesty in Council. According to the White Paper, the Chief Justice and the Judges of the Federal Court (as also of the Supreme Court if it comes into being) will be appointed by His Majesty and will hold office during good behaviour. Their salaries, pensions, etc., will be fixed by Order in Council and will not be subject to the vote of the Legislature.

After the commencement of the Constitution Act, the present Council of the Secretary of State for India will be dissolved. The Secretary of State will then appoint not less than three and not more than six persons who will form his Advisory Council. Persons appointed by the Secretary of State to any of the Services before the commencement of the Constitution Act will continue

[1] Paragraph 15 of the White Paper Proposals.
[2] Paragraph 49 of the Proposals.